

TENTATIVE RULINGS FOR June 12, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

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You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

ADELA SOSA

v.

IN-ROADS CREATIVE PROGRAMS, INC., et al.

CIVRS2403045

PROCEDURAL/FACTUAL BACKGROUND

On December 23, 2024, Plaintiff Adela Sosa filed her Complaint against Defendants In-Roads Creative Programs, Inc. (“In-Roads Creative”) and In-Roads Management, Inc. (“In-Roads Management”) [collectively “In-Roads”]. The Complaint pleads 11 causes of action: (1) unpaid overtime, (2) unpaid minimum wages, (3) denied meals, (4) denied rest breaks, (5) waiting time penalties, (6) inaccurate wage statements, (7) failure to pay timely wages, (8) failure to indemnify, (9) failure to pay interest on deposits, (10) violation of Labor Code section 227.3, and (11) violation of the Unfair Competition Law.

The Complaint alleges that In-Roads jointly employed Sosa (¶¶3-4). However, they failed to pay for all hours worked, e.g., hours waiting to clock in, to complete pre-shift and post-shift tasks, donning and doffing safety equipment, and security screenings. They used an improper rounding system. When overtime was paid, the rate failed to include all required remunerations (¶¶14-15). Sosa and other hourly employees were also not provided code-compliant meals and rest breaks (¶¶16-17). Because of these things, Sosa and others were not paid timely all due wages during employment and at separation, and were given inaccurate wage statements. Defendants further failed to pay all accrued vacation at separation, and pay the

interest on deposits (§§18-20, 22-23). Finally, In-Roads failed to reimburse for mileage or gas when Sosa and others used vehicles for work-related purposes (§21).

Defendant In-Roads moved to compel Plaintiff Sosa, individually, to arbitration and dismiss the class claims. Plaintiff Sosa opposed. Defendant In-Roads replied.

To address the execution of the agreement to arbitrate, evidentiary hearings were held on October 24, 2025, and December 5, 2025.

After the evidentiary hearings, Defendants In-Roads filed its supplemental brief on January 29, 2026, Plaintiff Sosa filed her supplemental opposition on February 19, 2026, and Defendant In-Roads filed its supplemental reply on March 5, 2026. A hearing on the motion to compel arbitration was set for May 7, 2026. The hearing was continued to June 12, 2026 to allow counsel to present oral argument after the court had posted its tentative ruling.

DISCUSSIONS

Statement of the Law

Federal Arbitration Act (FAA). The FAA authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. §2.) In situations governed by the FAA, conflicting state law is preempted. (*Volt Info. Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477.)

Under the FAA, to compel arbitration, the court must find that an agreement exists for arbitration between the parties and that the agreement covers the dispute. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 648-49.) The enforcement of an arbitration clause is a matter of ordinary state-law contract principles and should be enforced according to its terms. (*AT&T Mobility LLC v. Concepcion* (2011) 131 S.Ct. 1740, 1745.) Thus,

arbitration agreements can be declared unenforceable on contract defenses of fraud, duress, or unconscionability. (*Id.* at p. 1746.) Any doubt about the arbitrability of a dispute under the FAA is resolved in favor of arbitration. (*Id.* at p. 650.)

California Arbitration Act (CAA). Under the CAA, a party to an arbitration agreement may move to compel arbitration if the other contractual party refuses to arbitrate, and the court shall order the parties to arbitrate if an agreement to arbitrate exists unless (a) the right to arbitration is been waived, (b) grounds exist to revoke the agreement, or (c) a party to the arbitration agreement is a party to a pending action with a third-party, arising from the same or series of related transactions, and a probability exists of conflicting rulings. (Code Civ. Proc., §1281.2.)

The court must determine whether a written arbitration agreement exists, if any defense to its enforcement is raised, and whether the agreement is enforceable. (*Rosenthal v. Great Western Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The petitioner bears the burden of proving the existence of the arbitration agreement by the preponderance of the evidence, while the respondent bears the burden of proving by a preponderance of the evidence any defense to enforcement. (*Ibid.*) The trial court's role is to resolve these factual issues. (*Id.* at p. 414.)

California law favors the enforcement of valid arbitration agreements. (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 320 [*"Erickson"*]; *In re Tobacco I* (2004) 124 Cal.App.4th 1095, 1103.) Any doubts about arbitration will be resolved against the party asserting a defense to arbitration, whether the issue is the construction of contract language, waiver, delay, or any like defense to arbitrability. (*Ericksen, supra*, 35 Cal.3d at p. 320; *In re Tobacco I, supra*, 124 Cal.App.4th at p. 1103.)

If arbitration is ordered, the action between the arbitrating parties shall be stayed. (Code Civ. Proc., §1281.4; 9 U.S.C. §3; *Leenay v. Superior Court (Lowe's Home Centers, LLC)* (2022) 81 Cal.App.5th 553, 563; *California Crane School, Inc. v. Google LLC* (N.D. Cal. 2022) 621 F.Supp.3d 1024, 1032-1033.)

Objections

Along with her opposition, Plaintiff filed nine evidentiary objections. Along with their reply, Defendants filed thirty-two objections. The Court rules as follows:

- Plaintiff's objections: OVERRULES objections 1, 2, and 4-9; SUSTAIN objection 3 (lack of foundation / personal knowledge).
- Defendants' objections: SUSTAINS objections 1, 6, 21, 23, 31, and 32 (improper opinion/argument); OVERRULE objections 2-5, 7-20, 22, and 24-30.

Analysis

***Does the FAA Apply?*¹**

In-Road Creative's Employee/Staff Manual ("Handbook") contains within section 10.1, a Mutual Agreement for Arbitration and Waiver of Right to Pursue Class Action Claim by Employee ("Arbitration Agreement"), which is acknowledged as establishing a contractual agreement through an employee signing an Acknowledgment and Mutual Agreement to Arbitration and Waiver of Right to Pursue Class Action Claim by Employee per Section 10.1 ("Arbitration Acknowledgment"). Within paragraph B of Section 10.1, the Arbitration

¹ The FAA applies to arbitration clauses involving interstate commerce. (9 U.S.C. §2; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534.) "Involving commerce" is the equivalent of the term "affecting commerce," which is a term of art ordinarily signaling the broadest permissible exercise of Congress's commerce clause power. (*Citizens Bank v. Alafabco, Inc.* (2003) 439 U.S. 52, 56.) The defendant bears the burden of demonstrating FAA coverage by declarations and other evidence. (*Shepard v. Edward Mackay Enterprises, Inc.* (2007) 148 Cal.App.4th 1092, 1101.)

Agreement states that In-Roads Creative and Employee agree to submit their claims to binding arbitration “in accordance with ... the Federal Arbitration Act.” (Exh. 1 to Evidence Binder.)

The above language is sufficient to hold the FAA governs because the parties contractually agreed it would govern. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-35.)

Does an arbitration provision exist that covers the issues herein?

a. Existence of Arbitration Agreement

Plaintiff challenged that the Arbitration Agreement and Arbitration Acknowledgment were not properly authenticated. However, Defendants only needed to initially present an arbitration agreement. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058-60.) It did that. The burden then shifts to Plaintiff to dispute its existence. (*Id.* at p. 1059; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.) Plaintiff Sosa attempted to do that by attesting to not recalling signing the Arbitration Acknowledgment. (Sosa Decl. at ¶21 [Exh. 7 to Evidence Binder].) Yet when a document is physically executed with a “wet” signature, it cannot be refuted by merely attesting to no recollection of signing it; the plaintiff must submit evidence that the signature on the agreement is not his signature. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Plaintiff does not do that. Rather, at the December 5, 2025, evidentiary hearing, Sosa testified that the handwriting and signature on the Acknowledgment was her writing and signature. (Sosa Testimony at 71:26-72:7, 85:8-14 [Exh. B to Evidence Binder].)

Next, Plaintiff argued that mutual consent is lacking because there was fraud in obtaining her signature to the Arbitration Acknowledgment.

Arbitration agreements are governed by contract principles, including whether a party can be bound to or invoke arbitration. (*DMS Services, LLC v. Superior Court (Zurich Services Corp.)* (2012) 205 Cal.App.4th 1346, 1352.) To form a contract, there must be mutual consent. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 787-88.) Arbitration is a matter of consent. (*Granite Rock Co. v. International Broth. Of Teamsters* (2010) 561 U.S. 287, 299.)

Fraud in the execution/inception is where the promisor is deceived as to the nature of the act, and actually does not know what he is signing, or does not intend to enter into a contract thereby mutual assent is lacking. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 415 [“*Rosenthal*”].) “[W]e conclude claims of fraud in the execution of the entire agreement are not arbitrable under either state or federal law. If the entire contract is void *ab initio* because of fraud, the parties have not agreed to arbitrate any controversy; under that circumstance, *Prima Paint [Corp v. Flood & Conklin Mfg. Co.]* (1967) 388 U.S. 395] does not require a court to order arbitration.” (*Id.* at p. 416; *Larian v. Larian* (2004) 123 Cal.App.4th 751, 760-62.)

When a plaintiff seeks to void an arbitration agreement under fraud in the execution, the law “requires that the plaintiff, in failing to acquaint himself or herself with the contents of a written agreement before signing it, not have acted in an objectively unreasonable manner. One party’s misrepresentations as to the nature of character of the writing do not negate the other party’s apparent manifestation of assent, if the second party had ‘reasonable opportunity to know of the character or essential terms of the proposed contract.’ [(Citation.)]” If a party, with such reasonable opportunity, fails to learn the nature of the document he or she signs such ‘negligence’ precludes a finding the contract is void for fraud in the execution. [(Citation.)] [¶] It follows that one party’s unreasonable reliance on the other’s misrepresentations, resulting in a

failure to read a written agreement before signing it, is an insufficient basis, under the doctrine of fraud in the execution, for permitting that party to avoid an arbitration agreement contained in the contract.” (*Rosenthal, supra*, 14 Cal.4th at p. 423.)

In determining the defense, the trial court sits as the trier of fact, weighs the declarations and other documentary evidence, and any oral testimony received at its discretion. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The party opposing the arbitration motion bears the burden of proving fraud in the execution by a preponderance of the evidence. (*Rosenthal, supra*, 14 Cal.4th at p. 413.)

In the documentary evidence, Defendants’ employees Guzman (administrator) and Granath (assistant) attested that In-Board Creative’s HR representative informed Guzman that several employees’ files were missing executed forms. Guzman then held a staff meeting on December 31, 2024. Sosa was at that meeting. Her missing documents were provided to her, and she took them home to review. Sometime in early January 2025, Sosa requested a copy of the Handbook from Guzman, which she provided. On January 13, 2025, Sosa returned the missing documents, which included the Arbitration Acknowledgment. After she did this, Guzman realized that still missing was Sosa’s signing the 3-page Statement Acknowledging Requirement to Report Suspected Abuse of Dependent Adults and Elders (“Mandated Reporter Acknowledgment”). Guzman had Granath go obtain Sosa’s signature. Granath took the form to Sosa while she was with 3 customers and informed her that it was the mandatory acknowledgment form that she was required to sign. Sosa signed it. (Guzman Decl. at ¶¶1, 3-6; Granath Decl. at ¶1, 3-6; Guzman Reply Decl. at ¶¶3-4, 6, Exh. F [Exhs. 3, 5-6, respectively, to Evidence Binder].)

At the evidentiary hearing, Guzman and Granath both clarified their declarations by noting their mistaken belief and misrepresentation that Sosa was present at the December 31, 2024 meeting when the missing documents were passed out. Rather, they clarified that although the meeting occurred, Sosa was not present. Instead, when Sosa returned from her leave in early January, on or about January 6-7, both Guzman and Granath met with her to provide the missing paperwork that Sosa needed to complete. Sosa asked to be able to review them, which was granted. Either that same day or sometime shortly thereafter, Sosa requested a copy of the Handbook from Guzman, which she printed and provided to her. Then, as noted in their declarations, Sosa returned the signed acknowledgments, including the Arbitration Acknowledgment, on January 13, 2025. In reviewing the provided paperwork, Guzman realized the 3-page Mandated Reporter Acknowledgment was missing. Granath was tasked with getting Sosa's signature. Granath testified she took the 3-page document to Sosa in the meeting room while she was with 3 clients to obtain her signature. She told her that it was the form related to acknowledging she is a mandated reporter. Sosa signed without asking questions. Upon obtaining that form, all forms completed by Sosa were transmitted to HR. (Guzman Testimony at pp. 10:21-11:7, 11:13-15, 12:8-12, 12:16-19, 13:21-14:16, 14:21-23, 14:24-15:19, 15:25-16:3, 20:14-21:16, 22:1-10, & 22:20-26; Granath Testimony at pp. 52:22-54:24, 55:12-56:3, 59:20-60, & 60:2-18 [Exh. A to Evidence Binder]; Granath Testimony at pp. 8:6-9:15, 9:17-28, 10:11-11:7, 12:2-28, 20:8-21:7, 22:20-23:15, 23:20-24, & 26:7-12 [Exh. B to Evidence Binder].)

Plaintiff Sosa attested and testified that she never received a copy of the Handbook, and the only documents given for her to sign was on January 13, 2025. She testified that there was no previous meeting with Granath and Guzman. When provided the acknowledgments on January 13, 2025, Granath only identified them as mandatory reporter forms. She said nothing

about the Arbitration Acknowledgment. She believed she was only signing documents related to being a mandated reporter. (Sosa Decl. at ¶¶7-13 [Exh. 7 to Evidence Binder]; Sosa Testimony at pp. 31:9-13, 33:19-35:10, 36:9-37:6, & 37:20-28 [Exh. B to Evidence Binder].)

Having heard and considered the testimony presented at the evidentiary hearings, and although Guzman and Granath were initially mistaken and misrepresented when they provided the Arbitration Acknowledgment to Sosa, the Court finds that their testimony is credible to support no fraud in the execution.

In particular, Granath is clear in her testimony that she provided only the 3-page Mandated Reporter Acknowledgment to Sosa to sign on January 13, 2025, because all other documents were signed and delivered. Sosa initially is clear that the document signed on January 13, 2025, that was presented by Granath was a 3-page document. She reviewed the first two pages and signed it. She only presumes that the Arbitration Acknowledgment and other documents must have also been included because she stands firm that she was never provided any documents earlier. (Sosa Testimony at pp. 57:18-58:8, 58:28-59:20, 61:20-62:21, & 84:17-85:1 [Exh. B to Evidence Binder].) When presented with a copy of the Mandated Reporter Acknowledgment, Sosa admits that it is the 3-page document that she signed on January 13, 2025, which was presented by Granath. (Sosa Testimony at pp. 68:15-71:1 [Exh. B to Evidence Binder].)

Sosa assumes that she signed the Arbitration Acknowledgment under the guise that she was signing the Mandated Reporter Acknowledgment, but she offers nothing to support that assumption. Again, she agreed that she was provided a 3-page document (the size of the Mandated Reporter Acknowledgment), reviewed the first 2 pages, and then signed. If she signed all acknowledgments with the Mandatory Reporter Acknowledgment, she would have been

provided 7 pages, which would consists of 4 different documents [i.e., Mandated Reporter Acknowledgment (3 pages), Arbitration Acknowledgment (1 page), Handbook Acknowledgment (1 page), Drug Testing Acknowledgment (1 page), and Trade Secret/Confidentiality Acknowledgment (1 page)].

Based on all evidence and testimony, Plaintiff Sosa fails in her burden of establishing that she was fraudulently induced into signing the Arbitration Acknowledgment. Therefore, Defendants In-Roads establish the existence of an arbitration agreement.

b. Scope of Arbitration Agreement

The Arbitration Agreement covers Plaintiff's employment claims:

This agreement shall apply to any and all claims legally permissible under applicable law relating to any aspect of employment, pre-employment, and post-employment with In-Roads (pre-hire through post-termination). (Exh. 1 [p. 67, 2nd full paragraph] to Evidence Binder.)

Covered Claims: This Agreement to arbitrate covers all grievances, disputes, claims, or causes of action (collectively, "claims") ... arising out of Employee's employment with In-Roads and the termination thereof.... The Parties to this Agreement specifically agree that all claims under the California Labor Code, including, but not limited to, claims for overtime, unpaid wages, and claims involving meal and rest breaks shall be subject to this Agreement. (Exh. 1 [§10.1, ¶C] to Evidence Binder].)

c. Class Waiver

Concerning the putative class, the Arbitration Agreement states, "Employee and In-Roads expressly intend and agree that: (a) class action and representative action procedures are hereby waived and shall not be asserted, nor will they apply, in any arbitration pursuant to this Agreement; (b) each will not assert class action or representative action claims against the other in arbitration or otherwise; and (c) Employee and In-Roads shall only submit their own,

individual claims in arbitration and will not seek to represent the interest of any other person.” (Exh. 1 [§10.1, ¶E] to Evidence Binder.)

Class arbitration is permissible but only when “there is a contractual basis for concluding that the party *agreed* to do so.” (*Stolt-Nielsen S.A. v. AnimalFeeds International Corp.* (2010) 559 U.S. 662, 684; *Nelson v. Legacy Partners Residential, Inc.* (2012) 207 Cal.App.4th 1115, 1128.) Furthermore, in arbitration agreements governed by the FAA, class waivers are enforceable. (*Epic Systems Corp. v. Lewis* (2018) 138 S. Ct. 1612, 1616.) When an arbitration agreement does not authorize class arbitration of disputes, case law provides for dismissal without prejudice of the class claims. (*Id.*; *Kinecta Alternative Financial Solutions, Inc. v. Superior Court* (2012) 205 Cal.App.4th 506, 510-11.)

Here, there is a clear, unmistakable waiver of class arbitration, and agreement that the arbitration would be on an individual basis.

Is there a Defense to the Enforcement of the Arbitration Agreement?

Under Code of Civil Procedure section 1281.2, if an arbitration agreement exists the court should order the claims to arbitration unless (a) such has been waived, (b) grounds exist to revoke the agreement, or (c) there is a possibility of conflicting rulings.

Plaintiff Sosa contended the Arbitration Agreement was unconscionable.²

Unconscionability is the absence of meaningful choice on the part of one of the parties together with contract terms, which are unreasonably favorable to the other party. (*Allan v. Snow Summit* (1996) 51 Cal.App.4th 1358, 1376.) It has procedural and substantive elements. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114

² At the December 5, 2025, evidentiary hearing, the Court indicated that it had initially found no unconscionability. (Exh. B [p. 89:11-16] to Evidence Binder.) Nevertheless, this ruling addresses the issue of unconscionability.

[“*Armendariz*”). Although both must be present, they do not need to be present to the same degree. (*Ibid.*; *Roman v. Superior Court (Flo-Kem, Inc.)* (2009) 172 Cal.App.4th 1462, 1469.)

a. Procedural

Procedural unconscionability concerns how the contract was negotiated and the circumstances of the parties at the time. (*Suh v. Superior Court (CHA Hollywood Medical Center, L.P.)* (2010) 181 Cal.App.4th 1504, 1515 [“*Suh*”]; *Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 113 [“*Martinez*”). The oppression arises when there is an inequality of bargaining power, or one party has no real power to negotiate or a meaningful choice. (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84 [“*Carmona*”). The surprise is a function of the disappointed reasonable expectations of the weaker party [*Armendariz, supra*, 24 Cal.4th at p. 113] or when an unconscionable provision is hidden [*Carmona, supra*, 226 Cal.App.4th at p. 84].

Plaintiff argues that the procedural unconscionability existed because the Arbitration Agreement and Acknowledgment were contracts of adhesion and the format was conspicuous since the Arbitration Acknowledgment was separated from the Arbitration Agreement.

The agreement is not adhesive because it contains an opt-out provision. (Exhs. 1 [§10.1, ¶G] & 2 [stating agreement is optional and confirming opt-out procedures] to Evidence Binder.)

The agreement is not inconspicuous. The acknowledgment form, in bold, underlined font highlights the specific portion of the handbook providing for arbitration.

b. Substantive

Substantive unconscionability focuses on the terms of the agreement and the presence of overly harsh or one-sided results that shock the conscience. (*Suh, supra*, 181 Cal.App.4th at p. 1515; *Martinez, supra*, 118 Cal.App.4th at p. 113.)

Plaintiff Sosa argues that substantive unconscionability existed because pre-dispute jury waiver, lack of mutuality, and wholesale Private Attorney General Act (PAGA) waiver.

A jury trial waiver does not provide a basis for a claim of substantive unconscionability. (See *Holley-Gallegly v. TA Operating, LLC* (9th Cir. 2023) 74 F.4th 997, 1002-1003 (applying Calif. law).) This case involves an arbitration agreement, not a pre-dispute jury trial waiver. (See, e.g., *Grafton Partners v. Superior Court* (2005) 36 Cal.4th 944, 955 [“The analogy to arbitration agreements is not persuasive. Unlike pre-dispute jury waivers, pre-dispute arbitration agreements are specifically authorized by statute.”].)

Plaintiff cites *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 326 for the proposition that the agreement is one-sided—that it requires Plaintiff to arbitrate her claims against third-party beneficiaries, but it would not require arbitration of their claims against him. (See Opp. 12-13.)

An arbitration agreement must have a modicum of bilaterality. (*Armendariz, supra*, 24 Cal.4th at p. 117.) Although *Cook* may have other factors, the Court of Appeal found an arbitration agreement lacked mutuality when the agreement required the employee to arbitrate all claims against the employer and related entities (i.e., officers, trustees, administrators, employees, and agents), but did not require the related entities to arbitrate their disputes against the employee. (*Cook, supra*, 102 Cal.App.5th at pp. 326-28.) That is the situation here, i.e., the Arbitration Agreement provides that In-Roads Creative will arbitrate any covered claim it has against Plaintiff Sosa, but Plaintiff Sosa must arbitrate any covered claims she has against In-Roads Creative, and its officers, directors, supervisors, managers, employees, or agents. Nonetheless, the Arbitration Agreement has a severability clause [Exh. 1 (§10.1, ¶O) to Evidence Binder]; thus, this language could be severed.

Even assuming the language in the arbitration agreement relating to waiver of representative claims is invalid (see *Viking River Cruises, Inc. v. Moriana* (2022) 142 S.Ct. 1906, 1924-1925 [“wholesale waiver[s] of PAGA claims . . . remain invalid”]), this case does not involve PAGA claims and the agreement contains a severability provision (Exh. 1 [§10.1, ¶O] to Evidence Binder.)

Although this litigation does not include a PAGA cause of action, it does not preclude finding an impermissible wholesale waiver rendering the Arbitration Agreement unconscionable. Yet the representative action waiver in the Arbitration Agreement is qualified that it does not apply to representative claims that cannot be waived under applicable law. (Exh. 1 [§10.1, ¶E] to Evidence Binder.) Thus, it cannot be said the representative waiver is a wholesale waiver. Even if it were, the severance clause could excise the preclusion of the wholesale waiver to save the Arbitration Agreement.

Based on the above, the Arbitration Agreement lacks substantive unconscionability and the possible procedural unconscionability provisions could be severed.

Therefore, the Court **GRANTS** Defendants In-Roads’ Motion to Compel Plaintiff Sosa to arbitration on an individual basis.

CONCLUSION

Based on the foregoing, the Court:

- (1) **GRANTS** Defendants In-Roads’ Motion to Compel Plaintiff Sosa to arbitration on an individual basis;
- (2) **DISMISSES** the class claims;
- (3) **STAYS** this litigation pending the arbitration;

(4) SUSTAINS Plaintiff Sosa's objection 3, but OVERRULES Plaintiff Sosa's objections 1, 2, and 4-9; and

(5) SUSTAINS Defendants In-Roads' objections 1, 6, 21, 23, 31, and 32; but OVERRULES Defendants In-Roads' objections 2-5, 7-20, 22, and 24-30.

The Court SETS a Hearing re: Status of Arbitration for: June 16, 2027 at 9:00 a.m.

Counsel for Defendants In-Roads is ordered to provide notice.

TENTATIVE